

EXHIBIT B

Existing Airbnb Prohibition and the Photography-Session Distinction

Why a six-hour daytime location use is not a short-term residential rental.

Submitted by: David McFadden and Robin McFadden | **Public hearing:** August 20, 2026

1. Point of Agreement

Village residents are broadly in agreement that paid short-term residential rentals are not a good idea for Tuxedo Park. With strong public support, David McFadden helped pass Local Law No. 1-2018, the Village's existing Airbnb prohibition. That law remains in force, and McFadden's support it.

The issue before the Board is therefore not whether Airbnb-style residential rentals should be permitted. The mayor's message does not say which Code chapter the proposed law would amend or define the "rental" of an accessory structure. Until the draft is published, the public cannot know whether the Board intends to regulate residential occupancy, transfers of possession, temporary licenses, admission-based events, owner-hosted activities, or some broader category.

2. What the Existing Code Actually Regulates

Residence building — §100-2

A "building, residence" is a house or building occupied in whole or in part as a home, residence, or sleeping place of one or more persons.

Permanent residence purposes — §100-2

"Permanent residence purposes" consists of occupancy of a residence building by the same natural person or family for 30 consecutive days or more. The definition addresses people occupying a residence, with limited no compensation and caregiving exceptions.

Existing prohibition — §100-6(G)

A residence building may be used only for permanent residence purposes, and advertising occupancy or use of a residence building for any other residential duration is unlawful.

Boathouse rule — §100-6(B)

The Code separately provides that a boathouse “under no circumstances shall be used for residence purposes.” The McFadden boathouse is on a separate tax lot and was not used as a home, residence, or sleeping place.

Source: [Village Code §100-2 — Definitions](#)

Source: [Village Code §100-6 — Permitted Uses](#)

2A. The July Discussion Was Broader Than the Mayor’s Later Description

July 16 agenda item 8(f) described “rentals of non-residential properties” to the public “for parties and other events.” The mayor’s later message instead described a proposed prohibition on renting “accessory structures” to the “general public.” Neither document supplies operative text. The change in terminology—nonresidential properties versus accessory structures; public versus public; parties and other events versus an undefined rental prohibition—makes publication of the actual draft essential.

The July meeting event page attaches numerous records but no proposed-local-law draft. That supports a request for the first draft date, version history, recipients, July minutes, video timestamp, and the formal action scheduling the hearing. It does not, standing alone, prove that no unposted draft existed.

3. What the Mayor’s Message Does—and Does Not—Say

The July 2026 Mayor’s Monthly Message describes a proposal “to prohibit the rental of accessory structures, such as boathouses, barns, garages, pools and tennis courts to the general public.” It supplies no definition of “rental,” “accessory structures,” or “general public,” and identifies no Code chapter to be amended. It is a public announcement, not operative legislation.

That omission matters because of a residential rental, a lease transferring possession, a temporary license to use a location, an owner-hosted book signing, a charitable fundraiser, and an invitation-only photography session are legally and factually different arrangements. The complete draft must identify which arrangements it covers and why.

4. Side-by-Side Comparison

Control, possession and the absence of residential occupancy are important to the Chapter 100 classification. David remained onsite throughout the six-hour session, and the owners did not surrender possession or control. These facts distinguish the

session from a residential rental, but they do not independently establish compliance with Chapter 51, which must be analyzed separately.

Existing short-term residential rental prohibition	McFadden photography session
Use of a residence building as a home, residence, or sleeping place	Use of a nonresidential boathouse as a temporary visual location
Occupancy by a tenant, renter, guest, or household	Invited production personnel present for work
Residential possession for fewer than 30 consecutive days	Approximately six hours, from 10:00 a.m. to 4:00 p.m.
Sleeping, housekeeping, or living activities	No sleeping, housekeeping, meals as a household, or residential living
Temporary transfer of residential possession	Owners retained possession and control
Already prohibited by Local Law No. 1-2018	If regulated, governed by photography, zoning, safety, noise, traffic, and impact provisions—not the Airbnb definition

5. Commercial Content Still Is Not Residential Occupancy

5A. Existing Village Distinctions Among Temporary and Compensated Uses

The official zoning scheme establishes a single underlying A4 Four-Acre Single-Family Residence District; the Gateway and Ridge Line/Precipice districts are overlays. The Tuxedo Club provides paid guest accommodation under some form of historical authority or approval. The precise legal basis, scope, duration, and conditions should be confirmed from Village records before the Club is used as a legal comparator.

The privately owned property known as Apartments contains rental units, but the authorized minimum term, certificate of occupancy and legal basis have not yet been documented. Unless those records show relevant short-duration use, the Apartments should not be treated as a comparator to a six-hour photography session.

These examples illustrate a classification question, equal treatment. Compensation alone does not define residential occupancy, but historical institutional lodging and ordinary apartment tenancies may be legally distinct from a paid location session. The Village should identify each category accurately and address photography under the provisions that govern it.

The Tuxedo Club provides paid guest accommodation under historical authority or approvals that should be confirmed from Village records. We are not challenging that activity. We ask the Board to distinguish actual lodging from a six-hour, owner-supervised session with no sleeping, residential occupancy or surrender of possession, while separately addressing Chapter 51.

Feature	Airbnb-style rental	Club guest room	Apartments	McFadden session
Overnight/sleeping use	Yes	Yes	Ordinarily yes	No
Residential possession	Ordinarily transferred	Guest occupies room; Club retains operations	Tenant occupies unit	Never transferred
Owner/operator control	Often absent	Club-controlled lodging operation	Depending on tenancy	Owner present throughout
Duration	Fewer than 30 days	To be documented	To be documented	Six hours
Legal basis	Prohibited by §100-6(G)	Historical rights/approvals to be produced	CO/approvals and terms to be produced	Not residential occupancy; separate Chapter 51 compliance question

An influencer's sponsored recording, a CEO's corporate-branding photograph, a designer's published portfolio, a realtor's listing video, and a homeowner's paid location session may each have a commercial purpose. None becomes a short-term residential rental unless it involves the residential occupancy, possession, sleeping, or housekeeping characteristics regulated by Chapter 100.

Compensation answers who may benefit economically; it does not establish residential occupancy as a home or sleeping place. It may, however, be relevant under Chapter 51 or another land-use rule. The Village should therefore debate image-making directly and should not use the Airbnb prohibition as a substitute description for a different activity.

6. Drafting Consequence

Any proposed law should keep the categories separate. If the Board believes photography or filming creates a regulatory concern, it should define that activity directly and use neutral standards addressing personnel, vehicles, hours, parking, noise, lighting, public-road use, insurance, and actual municipal costs.

This exhibit establishes only the Chapter 100 distinction. It is not concluded that the session was authorized under Chapter 51. The completely adopted Local Law No. 1-2018, Chapter 51 legislative history and administrative record should be considered when produced.

7. Consequence of Expanding Residential Language to Property Generally

The announced proposal may contemplate extending a restriction associated with residential premises to nonresidential structures or property. Until the draft is published, its exact wording and reach remain unknown. If such a change is proposed, however, it would have consequences far beyond correcting an omitted word.

A residence-based rule is bounded by occupancy as a home, residence, or sleeping place. A property-based rule can reach land, gardens, pools, tennis courts, docks, boathouses, garages, barns, and other structures even when no one occupies them. Depending on the definitions, it could also reach a temporary license, an owner-hosted activity, a professional service visit, an invitation-only event, or a compensated photography session in which the owner remains present, and possession never changes hands.

The resulting effect on private-property use deserves careful analysis. Property ownership does not confer on an unrestricted right to conduct every activity. However, a substantial expansion of Village regulation should address an identified public-welfare concern, use clear definitions related to that concern, apply uniformly and consider whether narrower impact-based controls would be sufficient. Expanding the law from short-term residential occupancy to temporary uses of property would constitute a substantive policy change—not merely a technical clarification of the existing Airbnb law.